Pets in strata | NSW Government

nsw.gov.au/housing-and-construction/strata/living/petsPrinted: 24 January 2022

Pets in strata

Understand if you can own a pet, and what to do if there's a problem.

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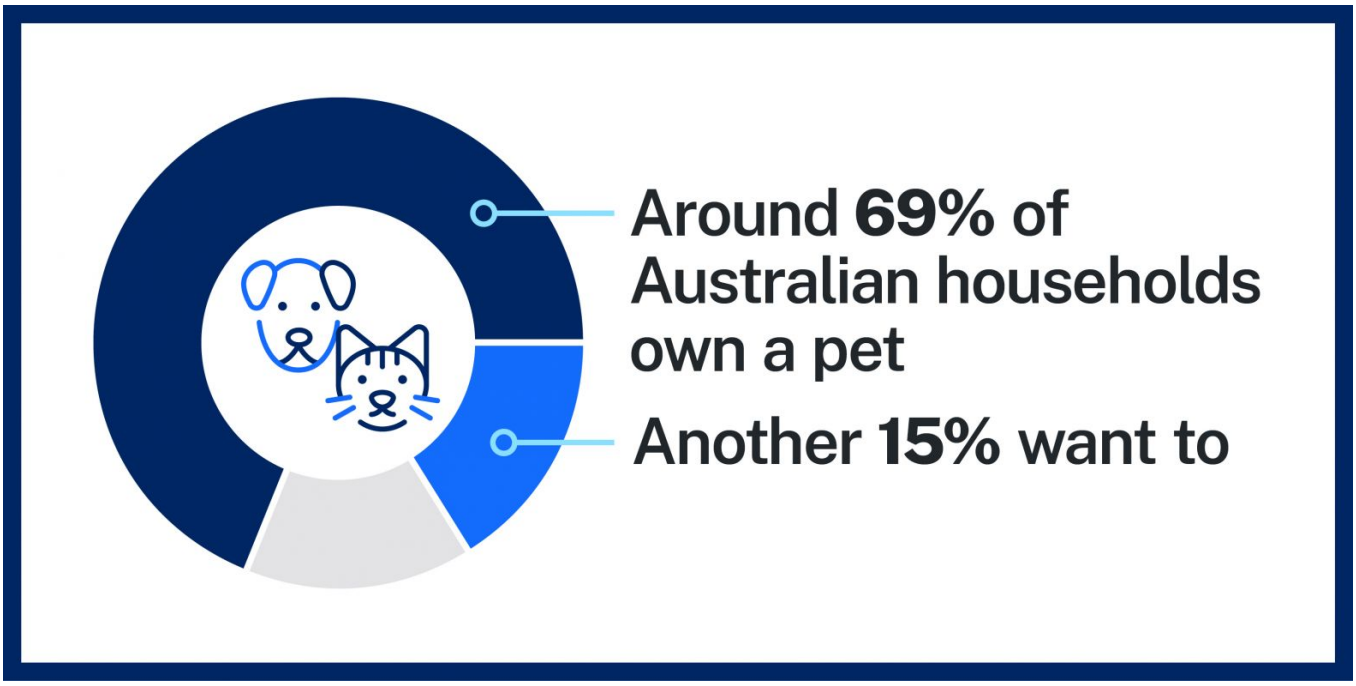
Key information

- An owners corporation cannot stop you getting or owning a pet, as long as it does not disturb other residents.
- If you are a tenant, your landlord can decide whether you are allowed a pet.
- You may need to tell the owners corporation before you get a pet.
- If you need to complain about someone else's pet, read your scheme's rules and speak to them first before contacting the owners corporation.
- Assistance animals cannot be banned from living in a strata scheme.

Did you know?



Are pets allowed in strata?

Yes. An owners corporation cannot stop you from owning a pet unless the pet causes ‘unreasonable interference’ - for example, it is a dangerous or restricted dog. However, your pet or pets must not disturb other residents in your scheme.

You may need to tell the owners corporation or strata committee in writing if you want to have a pet.

Owners corporations can create their own rules for pets. Make sure to check your scheme’s by-laws. However, by-laws banning all pets are not valid and banning animals based on size, type, or quantity, will not be valid in most circumstances.

If you rent, your landlord can decide whether you are allowed to keep a pet at the property.

How to tell the owners corporation

Most owners corporations will require you to write to the secretary or strata manager if you have a pet or want to get one. Check the scheme’s by-laws to see what the process is and what information is needed for approval. The owners corporation may ask for:

- the pet’s name, type, breed, weight and age
- a photo of the pet
- pet vaccination records and a microchip number (if your pet needs these in NSW).

What happens if my pet is rejected?

The owners corporation must follow certain rules when deciding a pet application. If they don’t, then your pet will be automatically approved to enter the scheme.

They must:

> only reject a pet if the pet causes an ‘unreasonable interference’. For example, dogs that are a restricted breed or have been declared as dangerous or menacing
> decide on your application in a 'reasonable timeframe'.

You can challenge a decision by contacting the owners corporation in writing to see if they will reconsider. If this does not work, you can ask for
free mediation

(https://stratamediation.fairtrading.nsw.gov.au/StrataFormCreator)
to help before going to the NSW Civil and Administrative Tribunal (the Tribunal). Pet owners can apply to the Tribunal for an order to allow their pet to stay.

What is unreasonable interference?

Unreasonable interference means your pet has behaved badly towards other residents or animals. This could include:

making constant noise that unreasonably affects the peace, comfort or convenience of another resident
repeatedly running at or chasing another resident or animal
attacking or threatening another resident or animal
repeatedly causing damage to common property or someone else's property
risking the health of another resident, through infection or infestation
causing a constant unpleasant smell in common property or someone else's property.

It is also an unreasonable interference when:

the owner of a cat or dog breaches a nuisance order placed on it

a dog is classified as dangerous or menacing, or

a dog is a restricted breed under the
Companion Animals Act 1998
(https://legislation.nsw.gov.au/view/whole/html/inforce/current/act-1998-087)
.

Can a landlord stop a tenant owning a pet?

Yes. If you are a tenant, you need permission from your landlord to own a pet. Your landlord can refuse to allow you to have a pet. They do not need to give a reason why.

Landlords cannot ask tenants to pay a pet deposit. Also, they can't charge a higher amount of rental bond for a tenant to keep a pet.

Rules for keeping pets in strata

An owners corporation can set rules about how owners keep their pets while living in strata.

Check your scheme's by-laws so you know the rules for owning a pet.

The rules often cover:

- keeping the animal within your property
- watching the animal when on common property
- cleaning up after your animal on common property.

Can an owners corporation evict me or my pet?

The owners corporation cannot evict you, but may try to remove your pet.

The owners corporation can only remove your pet if it causes 'unreasonable interference' to others or your pet's behaviour has broken a by-law.

They must follow the proper process and give you a chance to fix the situation before they attempt to evict your pet.

If you have broken a by-law, the owners corporation must first issue you a 'notice to comply' asking you to stop your pet's behaviour.

If the behaviour continues, you or the owners corporation can contact NSW Fair Trading for **free mediation (https://stratamediation.fairtrading.nsw.gov.au/StrataFormCreator)**.

If the issue is not resolved, anyone involved in the dispute can apply to the **Tribunal (https://www.ncat.nsw.gov.au/ncat/case-types/housing-and-property/strata-and-community-living/strata-schemes.html)** to remove the animal.

Learn more about dispute resolution (https://www.nsw.gov.au/housing-and-construction/strata/disputes).

Can my landlord evict me or my pet?

Yes – if your landlord has refused permission to have a pet or you haven't asked, and you keep a pet, then you may be breaking your rental agreement.

If you are, your landlord may ask you to remove the pet or move out of the property.

Making a complaint about another resident's pet

If you have concerns about another resident's pet, try speaking to the pet owner first. They might not know about the problem, for example if a dog is barking non-stop when they are at work.

When talking to the pet owner, remember that pets are often seen as 'part of the family'. Be friendly and pick a good time for both you and the pet owner.

Some schemes have an internal dispute process that you could use. Ask your strata committee or strata manager if there is one.

If the pet's behaviour has broken a by-law, the owners corporation can issue a notice for the owner to stop the behaviour. If it is still not resolved, anybody involved in the dispute can apply to the Tribunal for an order to remove the animal.

Getting a nuisance order

If the owners corporation or strata committee cannot solve the issue, you can apply to your local council to seek an order against nuisance dogs and cats.

To apply for an order, contact your local council via phone, email or post, or search online.

You may need to give proof of the behaviour to support the nuisance order.

If the council chooses to issue the order, the pet owner must comply with the rule in the order. If they do not, they can be fined by the council.

Assistance animals

Assistance animals cannot be banned from living in a strata scheme.

The owners corporation can ask the owner to provide evidence of their assistant animal's status, including:

- accreditation from an assistance animal training body
- an assistance animal permit issued by Service NSW
- a signed statement that the animal has been trained to assist a person with a disability and meets acceptable hygiene and behaviour standards.

Owners corporations should not ask for private medical records as evidence.

Trending topics

- Can strata refuse pets? (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws#toc-by-laws)
- How do I get a copy of my by-laws? (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws#toc-how-to-get-a-copy-of-the-by-laws)
- How do I contact the strata committee? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)
- How to know who my strata manager is? (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)
- Difference between strata manager, building manager, and property manager (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-difference-between-a-strata-manager-building-manager-and-property-manager)

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:13 32 20 (https://www.nsw.gov.au/tel:13 32 20)8:30am to 5pm, Monday-Friday
In person:Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)

Related information

Popular pages

Strata disputes and complaints (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

Learn how disputes between owners or residents, or complaints against strata managers and other workers, can be resolved.

→

Rules for living in strata (https://www.nsw.gov.au/housing-and-construction/strata/living/by-laws)

Understand the by-laws where you live, how to change them, and what to do if there's a breach in the by-laws.

→

Noise in strata (https://www.nsw.gov.au/housing-and-construction/strata/living/noise)

Most noise problems can be solved by speaking to the resident. Otherwise, contact the strata committee to find out your options.

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